

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT			1. CONTRACT ID CODE		PAGE 1 OF 11		
2. AMENDMENT/MODIFICATION NO. 0004		3. EFFECTIVE DATE		4. REQUISITION/PURCHASE REQ. NO. See Block 14		5. PROJECT NO. (If applicable)	
6. ISSUED BY DLA ENERGY BULK PETROLEUM PRODUCT 8725 JOHN J. KINGMAN ROAD FORT BELVOIR VA 22060		CODE SPE602		7. ADMINISTERED BY (If other than Item 6)		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (No., street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NO. SPE60226R0702	
				☒		9B. DATED (SEE ITEM 11) 2026 FEB 02	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NO.	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☐ is extended, ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:

(a) By completing Items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted; or (c) By separate letter or telegram which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER. If by virtue of this amendment you desire to change an offer already submitted, such change may be made by telegram or letter, provided each telegram or letter makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)

13. THIS APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NO. AS DESCRIBED IN ITEM 14.

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NO. IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation date, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not, ☐ is required to sign this document and return _____ copies to issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)

See Attached Continuation Sheet(s).

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR		16B. UNITED STATES OF AMERICA	
15C. DATE SIGNED		16C. DATE SIGNED	
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

DLA Energy Bulk Petroleum Products
Rocky Mountain/West Coast
Annual Bulk Petroleum Procurement
SPE602-26-R-0702
Amendment 0004

- A. Solicitation Note #14 NOTICE TO POTENTIAL SMALL BUSINESS OFFERORS has been revised to remove the reference to FAR 52.212-5 Contract Terms and Conditions Required To Implement Statutes or Executive Orders—Commercial Products and Commercial Services (OCT 2025).
- B. JAA, JA1, & JP5 Escalator Id revised from PLWCJET to PLLAWKLY and Base Ref Price revised from \$0.000000 to \$2.577620 in Section B of the solicitation
- C. F76 Base Ref Price revised from \$0.000000 to \$2.573493 in Section B of the solicitation.
- D. The following delivery notes have been revised:
- Throughput T0002 JAA to DFSP ANCHORAGE: “OFFERS EVALUATED THROUGH DFSP ANCHORAGE MUST INCLUDE VOLUMES FOR JOINT BASE ELMENDORF RICHARDSON (JBER) AND BRYANT AAF. THE VENDOR IS REQUIRED TO CONDUCT A FULL- SPECIFICATION (A SERIES) TEST ON ALL PRODUCTS UNDER THIS CONTRACT. TESTING WILL BE PERFORMED FOR ALL CHARACTERISTICS. HOWEVER, DISCHARGING SHALL COMMENCE ONLY AFTER THE C LEVEL TEST RESULTS SHOW CONFORMANCE TO SPECIFICATION. C LEVEL TESTING WILL BE DONE BY THE GOVERNMENT AT THE DLA ENERGY ALASKA LABORATORY, ANCHORAGE FOR DELIVERIES INTO DFSP ANCHORAGE. THE VENDOR SHALL RETAIN DESTINATION SAMPLES FROM DELIVERIES TO DFSP ANCHORAGE AND PERFORM AN A SERIES TEST AT THE EARLIEST TIME. THE VENDOR IS REQUIRED TO PROVIDE FULL-SPECIFICATION TEST RESULTS TO THE RECEIVING TERMINAL AND CONGNIZANT QUALITY ASSURANCE REPRESENTATIVE (QAR) AS SOON AS COMPLETED. THE VENDOR IS ALLOWED TO DISEMBARK THE VESSEL AFTER COMPLETION OF DISCHARGE AND PRIOR TO THE COMPLETION OF FULL A SERIES TESTING. HOWEVER, THE VENDOR ACCEPTS ALL RISKS AND RESPONSIBILITY OF THE FUEL SHOULD THE A SERIES TESTS FIND DISCHARGED PRODUCT TO BE OFF SPECIFICATION.”
 - Throughput T0001 F76 to DFSP West Oahu: “FOB DESTINATION MAX PARCEL SIZE IS 260,000 BBL.”
 - Throughput T0015 JAA to DFSP Puget Sound: “FOB DESTINATION MAX PARCEL SIZE IS 300,000 BBL”
 - Throughput T0016 JAA to DFSP Vancouver: “FOB DESTINATION MAX PARCEL SIZE IS 230,000 BBL”

- Throughput T0022 JAA to DFSP Carson Terminal: “FOB DESTINATION MAX PARCEL SIZE IS 223,000 BBL”
 - Throughput T0025 JAA to DFSP West Oahu: “FOB DESTINATION MAX PARCEL SIZE IS 260,000 BBL.”
 - Throughput T0026 JP5 to DFSP Puget Sound: “FOB DESTINATION MAX PARCEL SIZE IS 300,000 BBL”
 - Throughput T0027 JP5 to DFSP Selby: “FOB DESTINATION MAX PARCEL SIZE IS 265,000 BBL”
 - Throughput T0030 JP5 to DFSP Point Loma: “FOB DESTINATION MAX PARCEL SIZE IS 235,000 BBL”
 - Throughput T0031 JP5 to DFSP West Oahu: “FOB DESTINATION MAX PARCEL SIZE IS 260,000 BBL.”
- E. Throughput T0013 JAA to IDAHO PIPELINE additives package revised to: FSII: N, SDA: N, CI: N.
- F. Throughput T0018 JAA to KM LAS VEGAS additives package revised to: FSII: Y, SDA: Y, CI: Y.
- G. Throughput T0023 JAA to KM BULK STORAGE IMPERIAL additives package revised to: FSII: Y, SDA: Y, CI: Y.
- H. Throughput T0024 JAA to DFSP PEARL HARBOR additives package revised to: FSII: Y, SDA: N, CI: Y.
- I. CLIN 0044 JAA to KM BULK STORAGE IMPERIAL additives package revised to: FSII: Y, SDA: Y, CI: Y.
- J. CLIN 0061 JAA to DFSP PEARL HARBOR Additives package revised to: FSII: Y, SDA: N, CI: Y.
- K. CLIN 0061 JAA to DFSP PEARL HARBOR quantity revised from 50,679,000 USG to 35,475,000 USG.
- L. CLIN 0097 JAA to DFSP VANCOUVER Maximum Parcel Size for Mode Tanker revised from 270,000 BBLS to 230,000 BBLS.
- M. CLIN 0107 JAA to DFSP HICKAM has been added.
- N. B1 SUPPLEMENT: ECONOMIC PRICE ADJUSTMENT – PUBLISHED MARKET PRICE – DLA ENERGY DOMESTIC BULK paragraph (c) Adjustments has been revised to include the following:

(4) Failure to deliver. Notwithstanding any other wording of this supplement, no upward adjustment shall apply to product scheduled under the contract to be delivered before the effective date of the adjustment, unless the Contractor’s failure to deliver

according to the delivery schedule results from causes beyond the Contractor's control and without its fault or negligence, within the meaning of paragraphs (f), Excusable Delays, and (m), Termination for Cause, of the Contract Terms And Conditions - Commercial Items clause of this contract, in which case the contract shall be amended to make an equitable extension of the delivery schedule.

(5) Upward ceiling on economic price adjustment. The Contractor agrees that the total increase in any contract unit price, pursuant to these economic price adjustment supplement shall not exceed **300** percent of the original Base Award Unit Price in any applicable program year (whether a single year or multiyear program), except as provided hereafter.

- (i) If at any time the Contractor has reason to believe that within the near future a price adjustment under the wording of this supplement will be required that will exceed the current contract ceiling price for any item, the Contractor shall promptly notify the Contracting Officer in writing of the expected increase. The notification shall include a revised ceiling which the Contractor believes is sufficient to permit completion of remaining contract performance, along with appropriate explanation and documentation as required by the Contracting Officer.
- (ii) If an actual increase in the Adjusted Commodity Price would raise a Price Payable for an item above the current ceiling, the Contractor shall have no obligation under this contract to fill pending or future orders for such item, as of the effective date of the increase, unless the Contracting Officer issues a contract modification to raise the ceiling. If the contract ceiling will not be raised, the Contracting Officer shall so promptly notify the Contractor in writing.

(6) Revision of market price indicator. In the event —

- (i) Any applicable Commodity Price Index is discontinued, or its method of derivation is altered substantially; or
- (ii) The Contracting Officer determines that the Commodity Price Index consistently and substantially fails to reflect market conditions, -the parties shall mutually agree upon an appropriate and comparable substitute and the contract shall be modified to reflect such substitute effective on the date the indicator was discontinued, altered, or began to consistently and substantially fail to reflect market conditions. If the parties fail to agree on an appropriate substitute, the matter shall be resolved in accordance with paragraph (d), Disputes, of the Contract Terms and Conditions - Commercial Items contract text of this contract.

O. The following clause and provision have been removed:

- FAR 52.212-3 OFFEROR REPRESENTATIONS AND CERTIFICATIONS —
COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAY 2024)
ALTERNATE I (FEB 2024) of 52.212-3

- FAR 52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND MATERIAL SAFETY DATA (FEB 2021)

P. The following clause has been removed:

- FAR 52.212-5 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT STATUTES OR EXECUTIVE ORDERS—COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES (MAR 2025) (DEVIATION 2025-00004).

Q. The following clauses have been incorporated by reference:

- FAR 52.203-15 WHISTLEBLOWER PROTECTIONS UNDER THE AMERICAN RECOVERY AND REINVESTMENT ACT OF 2009 (FEB 2026)
- FAR 52.204-27 PROHIBITION ON A BYTEDANCE COVERED APPLICATION (FEB 2026)
- FAR 52.209-6 PROTECTING THE GOVERNMENT'S INTEREST WHEN SUBCONTRACTING WITH CONTRACTORS DEBARRED, SUSPENDED, PROPOSED FOR DEBARMENT, OR VOLUNTARILY EXCLUDED. (FEB 2026)
- FAR 52.219-7 NOTICE OF PARTIAL SMALL BUSINESS SET-ASIDE (NOV 2020)
- FAR 52.219-9 SMALL BUSINESS SUBCONTRACTING PLAN (FEB 2026)
- FAR 52.219-14 LIMITATIONS ON SUBCONTRACTING (FEB 2026)
- FAR 52.222-19 CHILD LABOR—COOPERATION WITH AUTHORITIES AND REMEDIES (FEB 2026)
- FAR 52.222-50 COMBATING TRAFFICKING IN PERSONS (FEB 2026)
- FAR 52.222-54 EMPLOYMENT ELIGIBILITY VERIFICATION (FEB 2026)
- FAR 52.223-3 HAZARDOUS MATERIAL IDENTIFICATION AND SAFETY DATA (FEB 2026)
- FAR 52.223-11 OZONE-DEPLETING SUBSTANCES AND HIGH GLOBAL WARMING POTENTIAL HYDROFLUOROCARBONS (FEB 2026)
- FAR 52.223-23 SUSTAINABLE PRODUCTS AND SERVICES (FEB 2026)
- FAR 52.225-13 RESTRICTIONS ON CERTAIN FOREIGN PURCHASES (FEB 2026)
- FAR 52.226-8 ENCOURAGING CONTRACTOR POLICIES TO BAN TEXT MESSAGING WHILE DRIVING (MAY 2024)
- FAR 52.229-12 TAX ON CERTAIN FOREIGN PROCUREMENTS (FEB 2021)
- FAR 52.232-33 PAYMENT BY ELECTRONIC FUNDS TRANSFER-SYSTEM FOR AWARD MANAGEMENT (OCT 2018)
- FAR 52.232-34 PAYMENT BY ELECTRONIC FUNDS TRANSFER-OTHER THAN SYSTEM FOR AWARD MANAGEMENT (JUL 2013)
- FAR 52.240-1 PROHIBITION ON UNMANNED AIRCRAFT SYSTEMS MANUFACTURED OR ASSEMBLED BY AMERICAN SECURITY DRONE ACT-COVERED FOREIGN ENTITIES (FEB 2026)
- FAR 52.247-64 PREFERENCE FOR PRIVATELY OWNED U.S.-FLAG COMMERCIAL VESSELS (FEB 2026)

R. The following clauses and provisions have been incorporated by full text:

**FAR 52.215-1 INSTRUCTIONS TO OFFERORS-COMPETITIVE ACQUISITION –
*ALTERNATE I - DEVIATION (FEB 2026)***

(a) Definitions. As used in this provision-

In writing, writing, or written means any worded or numbered expression that can be read, reproduced, and later communicated, and includes electronically transmitted and stored information.

Proposal modification is a change made to a proposal before the request for proposal closing date and time, or made in response to an amendment, or made to correct a mistake at any time before award.

Proposal revision is a change to material elements of a proposal made after the request for proposal closing date, at the request of or as allowed by a Contracting Officer, as the result of negotiations.

Time, if stated as a number of days, is calculated using calendar days, unless otherwise specified, and will include Saturdays, Sundays, and legal holidays. However, if the last day falls on a Saturday, Sunday, or legal holiday, then the period shall include the next working day.

(b) Amendments to requests for proposals. If this request for proposal (RFP) is amended, all terms and conditions that are not amended remain unchanged. Offerors shall acknowledge receipt of any amendment to this RFP by the date and time specified in the amendment(s).

(c) Submission, modification, revision, and withdrawal of proposals.

(1)

(i) Proposals and modifications to proposals shall be—

(A) Submitted using the method and the format specified in the RFP;

(B) Addressed to the office specified in the RFP; and

(C) Showing the time and date specified for receipt, the RFP number, and the name and address of the offeror.

(ii) Offerors using commercial carriers should ensure that the proposal is marked on the outermost wrapper with the information in paragraphs (c)(1)(i)(B) and (C) of this provision.

(2) The first page of the proposal must show—

(i) The RFP number;

(ii) The name, address, and telephone number of the offeror (and electronic address if available);

(iii) A statement specifying the extent of agreement with all terms, conditions, and provisions included in the RFP and agreement to furnish any or all items upon which prices are offered at the price set opposite each item;

(iv) Names, titles, and telephone number (and electronic addresses if available) of persons authorized to negotiate on the offeror's behalf with the Government in connection with this RFP; and

(v) Name, title, and signature of person authorized to sign the proposal. Proposals signed by an agent shall be accompanied by evidence of that agent's authority, unless that evidence has been previously furnished to the issuing office.

(3)

(i) Offerors are responsible for submitting proposals, and any modifications or revisions, so as to reach the Government office designated in the RFP by the time specified in the RFP. If no time is specified in the RFP, the time for receipt is 4:30 p.m., local time, for the designated Government office on the date that proposal or revision is due.

(ii)

(A) Any proposal, modification, or revision received at the Government office designated in the RFP after the exact time specified for receipt of offers is "late" and will not be considered unless it is received before award is made, the Contracting Officer determines that accepting the late offer would not unduly delay the acquisition; and-

(1) If it was transmitted through an electronic commerce method authorized by the RFP, it was received at the initial point of entry to the Government infrastructure not later than 5:00 p.m. one working day prior to the date specified for receipt of proposals; or

(2) There is acceptable evidence to establish that it was received at the Government installation designated for receipt of offers and was under the Government's control prior to the time set for receipt of offers; or

(3) It is the only proposal received.

(B) However, a late modification of an otherwise successful proposal that makes its terms more favorable to the Government, will be considered at any time it is received and may be accepted.

(iii) Acceptable evidence to establish the time of receipt at the Government installation includes the time/date stamp of that installation on the proposal wrapper, other documentary evidence of receipt maintained by the installation, or oral testimony or statements of Government personnel.

(iv) If an emergency or unanticipated event interrupts normal Government processes so that proposals cannot be received at the office designated for receipt of proposals by the exact time specified in the RFP, and urgent Government requirements preclude amendment of the RFP, the time specified for receipt of proposals will be deemed to be extended to the same time

of day specified in the RFP on the first work day on which normal Government processes resume.

(v) Proposals may be withdrawn by written notice received at any time before award. Oral proposals in response to oral RFPs may be withdrawn orally. Proposals may be withdrawn in person by an offeror or an authorized representative, if the identity of the person requesting withdrawal is established and the person signs a receipt for the proposal before award.

(4) Unless otherwise specified in the RFP, the offeror may propose to provide any item or combination of items.

(5) Offerors shall submit proposals in response to this RFP in English, unless otherwise permitted by the RFP, and in U.S. dollars, unless the provision at FAR 52.225-17, Evaluation of Foreign Currency Offers, is included in the RFP.

(6) Offerors may submit modifications to their proposals at any time before the RFP closing date and time, and may submit modifications in response to an amendment, or to correct a mistake at any time before award.

(7) Offerors may submit revised proposals only if requested or allowed by the Contracting Officer.

(8) Proposals may be withdrawn at any time before award. Withdrawals are effective upon receipt of notice by the Contracting Officer.

(d) Offer expiration date. Proposals in response to this RFP will be valid for the number of days specified on the RFP cover sheet (unless a different period is proposed by the offeror).

(e) Restriction on disclosure and use of data. Offerors that include in their proposals data that they do not want disclosed to the public for any purpose, or used by the Government except for evaluation purposes, shall-

(1) Mark the title page with the following legend:

Mark the title page with the following legend: This proposal includes data that shall not be disclosed outside the Government and shall not be duplicated, used, or disclosed—in whole or in part—for any purpose other than to evaluate this proposal. If, however, a contract is awarded to this offeror as a result of, or in connection with, the submission of this data, the Government shall have the right to duplicate, use, or disclose the data to the extent provided in the resulting contract. This restriction does not limit the Government's right to use information contained in this data if it is obtained from another source without restriction. The data subject to this restriction are contained in sheets [insert numbers or other identification of sheets]; and

(2) Mark each sheet of data it wishes to restrict with the following legend:

Use or disclosure of data contained on this sheet is subject to the restriction on the title page of this proposal.

(f) Contract award.

(1) The Government intends to award a contract or contracts resulting from this RFP to the responsible offeror(s) whose proposal(s) represents the best value after evaluation in accordance with the factors and subfactors in the RFP.

(2) The Government may reject any or all proposals if such action is in the Government's interest.

(3) The Government may waive informalities and minor irregularities in proposals received.

(4) The Government intends to evaluate proposals and award a contract after conducting negotiations with offerors whose proposals have been determined to be within the competitive range. If the Contracting Officer determines that the number of proposals that would otherwise be in the competitive range exceeds the number at which an efficient competition can be conducted, the Contracting Officer may limit the number of proposals in the competitive range to the greatest number that will permit an efficient competition among the most highly rated proposals. Therefore, the offeror's initial proposal should contain the offeror's best terms from a price and technical standpoint.

(5) The Government reserves the right to make an award on any item for a quantity less than the quantity offered, at the unit cost or prices offered, unless the offeror specifies otherwise in the proposal.

(6) The Government reserves the right to make multiple awards if, after considering the additional administrative costs, it is in the Government's best interest to do so.

(7) The Government may determine that a proposal is unacceptable if the prices proposed are materially unbalanced between line items or subline items. Unbalanced pricing exists when, despite an acceptable total evaluated price, the price of one or more line items is significantly overstated or understated as indicated by the application of cost or price analysis techniques. A proposal may be rejected if the Contracting Officer determines that the lack of balance poses an unacceptable risk to the Government.

(8) If a cost realism analysis is performed, cost realism may be considered by the source selection authority in evaluating performance or schedule risk.

(9) A written award or acceptance of proposal mailed or otherwise furnished to the successful offeror within the time specified in the proposal shall result in a binding contract without further action by either party.

(10) If a post-award debriefing is given to requesting offerors, the Government shall disclose the following information, if applicable:

(i) The agency's evaluation of the significant weaknesses or deficiencies in the debriefed offeror's offer.

(ii) The overall evaluated cost or price and technical rating of the successful and the debriefed offeror and past performance information on the debriefed offeror.

(iii) The overall ranking of all offerors, when any ranking was developed by the agency during source selection.

(iv) A summary of the rationale for award.

(v) For acquisitions of commercial products, the make and model of the product to be delivered by the successful offeror.

(vi) Reasonable responses to relevant questions posed by the debriefed offeror as to whether source-selection procedures set forth in the RFP, applicable regulations, and other applicable authorities were followed by the agency.

(vii) For DoD contracts in excess of \$10 million but not in excess of \$100 million with a small business or nontraditional defense contractor (10 U.S.C. 3014), an option for the contractor to request disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(viii) For award of a DoD contract in excess of \$100 million, disclosure of the agency's written source selection decision document, redacted to protect the confidential and proprietary information of other offerors for the contract award.

(End of provision)

FAR 52.216-2 ECONOMIC PRICE ADJUSTMENT-STANDARD SUPPLIES (NOV 2021)

a) The Contractor warrants that the unit price stated in the Schedule for _____ [*offeror insert Schedule line item number*] is not in excess of the Contractor's applicable established price in effect on the contract date for like quantities of the same item. The term "unit price" excludes any part of the price directly resulting from requirements for preservation, packaging, or packing beyond standard commercial practice. The term "established price" means a price that-

(1) Is an established catalog or market price for a commercial product sold in substantial quantities to the general public; and

(2) Is the net price after applying any standard trade discounts offered by the Contractor.

(b) The Contractor shall promptly notify the Contracting Officer of the amount and effective date of each decrease in any applicable established price. Each corresponding contract unit price shall be decreased by the same percentage that the established price is decreased. The decrease shall apply to those items delivered on and after the effective date of the decrease in the Contractor's established price, and this contract shall be modified accordingly.

(c) If the Contractor's applicable established price is increased after the contract date, the corresponding contract unit price shall be increased, upon the Contractor's written request to

the Contracting Officer, by the same percentage that the established price is increased, and the contract shall be modified accordingly, subject to the following limitations:

(1) The aggregate of the increases in any contract unit price under this clause shall not exceed 10 percent of the original contract unit price.

(2) The increased contract unit price shall be effective-

(i) On the effective date of the increase in the applicable established price if the Contracting Officer receives the Contractor's written request within 10 days thereafter; or

(ii) If the written request is received later, on the date the Contracting Officer receives the request.

(3) The increased contract unit price shall not apply to quantities scheduled under the contract for delivery before the effective date of the increased contract unit price, unless failure to deliver before that date results from causes beyond the control and without the fault or negligence of the Contractor, within the meaning of the Default clause.

(4) No modification increasing a contract unit price shall be executed under this paragraph (c) until the Contracting Officer verifies the increase in the applicable established price.

(5) Within 30 days after receipt of the Contractor's written request, the Contracting Officer may cancel, without liability to either party, any undelivered portion of the contract items affected by the requested increase.

(d) During the time allowed for the cancellation provided for in paragraph (c)(5) of this clause, and thereafter if there is no cancellation, the Contractor shall continue deliveries according to the contract delivery schedule, and the Government shall pay for such deliveries at the contract unit price, increased to the extent provided by paragraph (c) of this clause.

(End of clause)

S. Attachment 6 – Solicitation Fill-Ins has been removed.

T. A conformed copy of Solicitation SPE602-26-R-0702 has been posted to SAM.gov.